IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 210
(CAA)-74/ND/2022

IN THE MATTER OF:
Raama Buildcon Pvt. Ltd. And Ashtech Industries Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 01.03.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH
HON'BLE MEMBER (T)

PRESENT:

For the Applicant/ Petitioner	**:**	Adv. Kartikeya Goel
For the RD	**:**	Adv. Shankari Mishra Adv. Aakash Sharma, Adv. Pooja Ninania
For the OL	**:**	Adv. Hemlata Rawat, Adv. Rahul Bhatt
For the IT Deptt	**:**	Adv. Sanjay Kumar, Adv. Easha & Hemlata Rawat SC

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

There is an anomaly in the response filed by the Applicants to the queries raised by the RD. When the Applicants have admitted the deposits made by Transferor Company No. 1 as also the fact that more than 50% of the Companies' funds are deployed in investment and loan and advances. The Applicants have stated that its 100% turn-over is with reference to Non-financial activities. The two pleas cannot be reconciled, and confronted with the situation, the Ld. Counsel appearing for the Applicants seeks an opportunity to file the affidavit amplifying the anomaly. In the affidavit to be filed by the Applicants, they shall clearly state that the revenue generated by the Transferor Company No. 1 from Financial activities and Non-financial related other activities. Let the needful be done within two weeks.

List on 30.04.2024.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Satya Prakash